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No. 25-0648

IN THE SUPREME COURT OF TEXAS

HANNAH R. TANNER

Petitioner

vs.

TEXAS STATE UNIVERSITY

Respondent

On Petition for Review from the Third Court of Appeals, Austin, Texas, Cause No. 03-21-00131-CV

PETITION FOR REVIEW

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STATEMENT OF THE CASE

Nature of the Case: Plaintiff brought a claim under the Texas Tort Claims Act for injuries she sustained when she was thrown from a golf cart driven by an employee of Texas State University ("TSU"). TSU filed a plea to the jurisdiction, alleging that Tanner had not satisfied the statutory prerequisite of bringing suit within the statute of limitations.

Prior Proceeding: The trial court granted TSU's plea to the jurisdiction, and the Third Court of Appeals reversed in *Tanner v. Tex. State Univ.*, 644 S.W.3d 747 (Tex. App.—Austin 2022), *rev'd and remanded*, 689 S.W.3d 292 (Tex. 2024).

This Court reversed the court of appeals and affirmed the grant of TSU's plea to the jurisdiction. *Tex. State Univ. v. Tanner*, 689 S.W.3d 292 (Tex. 2024). The Court held that the statute of limitations is a statutory prerequisite to bringing a claim under the Tort Claims Act and that Tanner had not met that statutory prerequisite because she did not exercise diligence as a matter of law in serving citation on TSU. However, the Court also identified an issue of law for the Third Court of Appeals to address on remand.

Current Proceeding:

Court of Appeals: Third Court of Appeals, Texas, before Justices Gisela D. Trianna, Rosa Lopez Theofanis, and Karin Crump.

Disposition by The Court of Appeals:

This Court remanded for the Third Court of Appeals to answer the question whether service of citation on TSU's employee was effectively service of citation on TSU itself. The majority concluded that service on TSU's employee did not constitute service on TSU. The court of appeals affirmed the trial court's grant of the plea to the jurisdiction. *Tanner v. Tex. State Univ.*, No. 03-21-00131-CV, 2025 WL 1648343, at *8 (Tex. App.—Austin June 11, 2025, pet. filed).

In dissent, Justice Crump held that, by filing a motion to dismiss under Tex. Civ. Prac. & Rem. Code §101.106(e), TSU confirmed that the employee was acting in the course and scope of his employment and, consequently, TSU was liable for damages for conduct for which the statute waived TSU's immunity. Because the relief provided by §101.106(e) is that the suit will proceed against the government, the only relevant inquiry was to determine whether the suit could proceed (because the statutory prerequisite was satisfied), not whether service on the employee could be considered service on the employer. *Tanner*, 2025 WL 1648343, at *9-*10 (J. Crump, dissenting).

STATEMENT OF JURISDICTION

The Court has jurisdiction under Government Code section 22.001(a) because this petition presents the Court with a question of law that has state-wide ramifications and is important to the jurisprudence of the state.

ISSUES PRESENTED

ISSUE ONE: Can a government employer delay filing a motion to dismiss under Texas Civil Practices & Remedies Code §101.106(f) until after the statute of limitations runs to prevent the plaintiff from bringing suit against the government employer?

ISSUE TWO: In a lawsuit brought against a government employee in his official capacity, does timely service on the government employee satisfy the statutory prerequisite that suits against the government must be brought within the statute of limitations?

WHY THE COURT SHOULD GRANT THE PETITION FOR REVIEW

This case addresses a statutory prerequisite for bringing suit under Texas Civil Practices & Remedies Code §101, the Texas Tort Claims Act. Specifically, it asks whether timely service on a government employee, in a suit based on acts committed in the course and scope of his government employment, satisfies the statutory prerequisite that suits against the government be brought within the statute of limitations. To answer that question in this case, the Court must construe sections 101.106(e) and 101.106(f) of the Tort Claims Act.

As a whole, §101.106 sets out an "election of remedies" to secure the expedient dismissal of individual government employees when the proper defendant is the government employer. Under §101.106, the plaintiff can "elect" to sue either the employee or the employer. Regardless of which election is made, the statute has no deadline for either the employee or the employer to file a motion to dismiss the employee if the government employer is the proper defendant. There is nothing, then, other than decisions from this Court, to prevent either the employee or the employer from waiting until after the statute of limitations expires to identify the government as the proper defendant.

This Court has also already held that a government employer cannot rely on a statute of limitations defense if the **government employee** delays filing a motion to dismiss under **§101.106(f)** until after limitations expires, in order to prevent a plaintiff from bringing suit against the government employer. *See Univ. of Tex. Health Sci. Ctr. at San Antonio v. Bailey*, 332 S.W.3d 395 (Tex. 2011). In this case, the Court must decide whether the same is also true if it is the **government employer** who delays filing a motion to dismiss under **§101.106(e)** until after limitations runs, to prevent the plaintiff from bringing suit against the government employer.

This Court should grant the Petition for Review to ensure that the various sections of §101.106 are interpreted consistently within the context of that section, consistently among the Texas courts of appeal,[1] and consistent with the legislative purpose of §101.106 to ensure that lawsuits proceed against the proper defendant.

[1] Federal courts have also discussed, and would benefit from this Court's guidance on, the interplay between sections (e) and (f). *See, e.g. Hoyt v. Big Spring State Hosp.*, No. 6:15-CV-0003-BL, 2016 WL 7189844, at *16 (N.D. Tex. Dec. 8, 2016).

STATEMENT OF FACTS

The relevant facts are set out in the opinions by this Court and the Third Court of Appeals. Within the confines of §101.106, Tanner elected to sue Scott's employer for injuries she sustained when Scott's reckless driving threw Tanner out of a golf cart on TSU's campus, breaking her leg. Believing that Scott was employed by the University System, she filed her lawsuit and served the System before limitations expired. Tanner never sued Scott in his individual capacity. Although Tanner filed suit on September 29, 2016, the System waited until August 2018 to inform Tanner that it was not Scott's employer, and then did not tell her who his employer was. SCR 4, 37. The System was ultimately dismissed from the lawsuit on December 3, 2018. SCR 85

When the System denied employing Scott, Tanner served Scott directly with citation on September 18, 2018, for the acts committed as a government employee. SCR 58. The trial court ruled that service on Scott was timely. CR 56. Texas Assistant Attorney General Lisa Cubriel answered the lawsuit on behalf of Scott, but never filed a motion to dismiss Scott pursuant to §101.106(f). SCR 64.

Two years later, on May 20, 2020, after the government had failed to take any of the actions prescribed by §101.106 in a timely manner, and discovery had revealed that TSU was Scott's actual employer, Tanner was ultimately forced to advance the stalled litigation by serving citation on TSU. SCR 90. Ms. Cubriel finally decided to utilize the tool meant to "expediently dismiss" individual government employees and, almost two years after Scott had been served, on June 2, 2020, she filed a motion to dismiss Scott under §101.106(e). CR 11.

The plain language of §101.106(e) provides that the lawsuit would then proceed against TSU, but TSU filed a plea to the jurisdiction, alleging (1) the statute of limitations was a statutory prerequisite, and (2) Tanner had failed to satisfy the statutory prerequisite by failing to diligently serve TSU (which, according to TSU, had not been accomplished when she previously served Scott). In response, Tanner explained that the lawsuit against Scott in his official capacity had been a lawsuit against TSU all along, and the timely service on Scott was sufficient to satisfy the statutory prerequisite that Tanner timely bring her lawsuit against TSU. On remand from this Court, the Third Court of Appeals held that timely service on Scott was not timely

service on TSU and affirmed TSU's plea to the jurisdiction based on the statute of limitations.

SUMMARY OF ARGUMENT

There is no question that this personal injury case fits squarely within the parameters of claims for which the Tort Claims Act waives government immunity. However, at every stage of this litigation, Texas State University System, Texas State University, and Texas State's individual employee have manipulated one section of the Act to cleverly prevent this case from being resolved on the merits. Specifically, §101.106(e) is intended to protect individual government employees by ensuring that they are "expediently" dismissed from lawsuits which are properly brought against their employer. But in this case, the TSU defendants have manipulated a statute intended to protect the employee into a tool to protect the government employer from having to engage in the lawsuit at all. In other words, the TSU defendants have taken a legislatively enacted shield and turned it into an unintended sword for governmental entities, thereby allowing governmental entities to play litigation games in the courts.

The Court already put an end to the same type of behavior by a government employer in *Univ. of Tex. Health Sci. Ctr. at San Antonio v. Bailey*,

332 S.W.3d 395 (Tex. 2011). And just as it did in *Bailey*, this Court should again "have great difficulty accepting the notion that the Legislature intended the result" that TSU seeks to obtain in this case through its manipulation of §101.106(e) to insulate government employers from lawsuits stemming from conduct for which the Legislature has waived immunity.

The only logical application of the holding in *Bailey*, in order to continue to advance the express purpose of the §101.106, is for this Court to hold that, because a suit filed against the employee is deemed to have been brought against the employer, then service of the lawsuit on the employee should also be deemed service on that employer, allowing the claims to proceed against the government employer as the proper defendant.

ARGUMENT AND AUTHORITIES

I. The Legislative intent of §101.106 is to ensure the expedient dismissal of government employees from lawsuits involving the government, not to provide the government with a tool to avoid liability for conduct for which the Legislature has otherwise waived immunity.

The court of appeals correctly acknowledged that, to ascertain the intent of a statute, the court should consider the plain language of the statute, along with "the 'object sought to be obtained' by the statute and the 'consequences of a particular construction.'" *Tanner v. Tex. State Univ.*, No. 03-21-00131-CV, 2025 WL 1648343, at *4 (Tex. App.—Austin June 11, 2025, no pet. h.) (citing *Texas Adjutant Gen.'s Office v. Ngakoue*, 408 S.W.3d 350, 354-55 (Tex. 2013) (quoting TEX. GOV'T CODE § 311.023(1), (5))).

Section 101.106 is titled "election of remedies" and requires a plaintiff to elect to sue either a government employer for acts committed by their employees within the course and scope of their employment or to sue employees individually.[2] This Court has articulated the legislative policy and purpose behind §101.106, and courts of appeals, including the lower

[2] *See also Fort Worth Transp. Auth. v. Rodriguez*, 547 S.W.3d 830, 846 (Tex. 2018) (noting that election of remedies provision was originally incorporated into the TTCA to prevent plaintiffs from circumventing the TTCA's damages cap by suing government employees, who were, at that time, not protected).

court in this case, consistently describe both what that policy is and how to achieve it:

> Thus, when the suit arises from an employee's conduct that was within the scope of employment and could be brought against the government under the Tort Claims Act, we must favor construing the meaning of Section 101.106's various provisions **in the way "that most clearly leads to the early dismissal of a suit against an employee**."'

Tanner, 2025 WL 1648343, at *4 (emphasis added); *see also Ngakoue*, 408 S.W.3d at 355 (purpose of §101.106 is "favor[ing] the expedient dismissal of governmental employees when suit should have been brought against the government"). This Court should strive to achieve that clearly articulated policy—regardless of whether the Plaintiff elects to sue the employer or the employee or whether the resultant motion to dismiss is filed by the employee under section (f) or by the employer under section (e).

II. The actions TSU has been allowed to take in this case do not further the "object sought to be obtained" by §101.106.

One of the objects sought to be obtained by §101.106 is the efficient use of government resources. Neither TSU's actions nor the court of appeals's decision further that objective.

1. The University System could have identified TSU as the employer of Scott and the correct defendant.

From the outset, Tanner exercised her election to sue the government employer, rather than the employee. When Tanner initially sued the University System, the most efficient way to achieve the statute's purposes of preserving resources and bringing suits against the government rather than an individual employee would have been for the System to simply tell Tanner that TSU was Scott's employer.

But because TSU had a different strategy, and was apparently playing a long game ***not*** designed to ensure that suit was brought against the proper defendant, but to ensure ***instead*** that Tanner could not bring her claims at all, the attorney general thumbed her nose at both expediency and efficiency, opting for delay and the unnecessary expenditure of state funds, the multiplication of legal procedures, and the utter waste of judicial resources at every turn. Instead of just identifying Scott's employer as the proper defendant, Assistant Attorney General Lisa Cubriel first devised a plan to get the University System dismissed without identifying Scott's employer, thereby allowing the clock to run on limitations against TSU. CR 37, 65, 69.

2. Scott could have filed a motion to dismiss under §101.106(f).

The next logical step to both conserve resources and ensure the case proceeded against the proper defendant was for Scott to identify his employer and file a motion to dismiss under §101.106(f). However, this Court had already held in *Bailey* that the proper remedy in that situation would have been—even if the statute of limitations had already expired—to find that TSU had been in the suit all along, and could not, therefore, rely on a statute of limitations defense to prevent the lawsuit from proceeding against it. So, TSU took engaged in a different strategy and simply chose to do nothing at all to prevent the lawsuit from proceeding against Scott. *See* 04/11/25 App'ee Supp. Brief at 5-6 (TSU "Scott's actual employer—had no obligation to file an (e) motion to dismiss Scott . . . .Nor is there any obligation for an employee to file to a motion under subsection (f)."). The next step in TSU's game, therefore, was just to let the lawsuit sit until Tanner gave up or found a different way to move it forward. Tanner opted to serve the only remaining defendant, TSU.

3. When TSU was served, it claimed that it was too late for Tanner to maintain a claim against TSU.

When TSU failed to seek Scott's dismissal under the procedure provided by §101.106(e), Tanner, consistent with her original election to sue Scott's employer, took the only step available to her to move the case forward, and served TSU. TSU finally invoked the protections which §101.106 afforded to Scott and itself, by filing a §101.106(e) motion to dismiss, "confirming" that Scott was indeed acting in the course and scope of his employment, making TSU "liable for damages resulting from any qualifying conduct." *Tanner,* 2025 WL 1648343 at *9.

Apparently believing that it was unhampered by the limitations *Bailey* had previously placed on the government's ability to rely on a statute of limitations defense when the employer filed a §101.106(e) motion to dismiss, TSU accompanied its §101.106(f) motion to dismiss with a Plea to the Jurisdiction arguing that Tanner's claims were barred by limitations. To effect the Legislature's intent, whether a motion to dismiss is filed pursuant to section (e) or section ()f) must be a distinction without a difference, and this Court should grant Tanner's Petition to hold that neither 101.106(e) nor §101.106(f) can be intentionally manipulated by the government to thwart

the intended purpose of §101.106—*i.e.*, that claims under the Tort Claims Act proceed efficiently against the proper defendant.

III. The "consequences of the particular construction" adopted by the court of appeals runs contrary to both this Court's previous holding and the Legislative intent of the statute.

The consequences of the construction adopted by the court of appeals is to deprive §101.106(e) of the same authority which this Court gave to §101.106(f) in *Bailey*, and to allow TSU to get away with the exact behavior this Court refused to allow in *Bailey*.

The first time the case reached this Court, Tanner argued that *Bailey* required the Court to find that, since the case was deemed to have been brought against TSU even though it named Scott as a defendant, then timely service on Scott should be deemed timely service on TSU. *Tanner*, 689 S.W.3d at 303. After all, *Bailey* had already expressly held that, when the government employee waited until after limitations expired to file a motion to dismiss under §101.106(f), the employer could not rely on the expiration of limitations to avoid being substituted into the lawsuit as the proper defendant. Tanner argued that the same result was required when, in this case, it was the government employer, rather than the employee, who first waited until after limitations expired to file a motion to dismiss under

§101.106(e) and then argued that, even though the government employer was the proper defendant, limitations for bringing a claim against it had expired.

The Court deferred to the Third Court of Appeals to determine whether *Bailey* applied to the motion to dismiss filed under §101.106(e) the same way it applied to motion to dismiss filed in *Bailey* under §101.106(f). *Id*. The court of appeals held that *Bailey* did not apply, and in doing so, allowed TSU to manipulate the timing of filing a §101.106 motion to have the case dismissed based on the statute of limitations. *Tanner*, 2025 WL 1648343, at *6.

1. This has been a suit against Scott's employer "all along."

In this case, the Court originally analyzed whether the statute of limitations was, in fact, a statutory prerequisite to bringing suit under the Tort Claims Act. Having found that it was, the Court also held that diligent service was a necessary component of satisfying that statutory prerequisite. *Tanner*, 689 S.W.3d at 298-300.

Bailey also began by addressing the general application of a statute of limitations in the context of the Tort Claims Act. In *Bailey*, the Court clarified that, in answering a statute of limitations question, "[t]he relation-

back doctrine . . . defines what is to be included in 'the action' to which limitations applies . . . . [The doctrine] . . . determine[s] not *when*, but on *what* limitations runs." *Bailey*, 332 S.W.3d at 400 (emphasis in original).

Bailey explained that, in a case under the Tort Claims Act, the "what" to which a statute of limitations can apply is either (1) a suit against the government for the acts of its employee, or (2) a suit against the individual employee. That relation-back question is not answered by asking whether the government defendants were properly identified. Rather, *Bailey* explained that the answer depends on whether the employee is sued for acts within the course and scope of his employment (in which case the suit is "deemed" to be a suit against the government employer) or for acts outside the scope of his employment (in which case the employee is properly sued in his individual capacity). *Id*. at 401. In *Bailey*, whether or not limitations barred that suit depended on "what" the suit was defined as, and, because the suit was deemed to be a suit against the government "all along," then the government could not claim that the statute of limitations barred the claim because only the employee was timely served.

The reasoning in *Bailey* requires the same conclusion here. From the inception of her lawsuit, Tanner alleged that Scott injured her while driving

TSU's golf cart on TSU's campus, in the course and scope of Scott's employment. "What" Tanner brought, then, regardless of whether she named or served Scott or TSU, was a suit against the government, as opposed to the individual. TSU has been in this suit all along and, just like the government employer in *Bailey*, could not rely on its belated "official" identification of the proper defendant as the basis for a limitations defense. Accordingly, TSU cannot rely on a statute of limitations defense to avoid having the case proceed against it either.

Tellingly, one federal court recently relied on *Bailey* when discussing whether the statute of limitations should relate back to a party by noting that it "makes intuitive sense" to allow a claim against one entity to relate back to the filing of claims against its affiliate when the "affiliate knows of the plaintiff's claims and is not misled or prejudiced" by the fact that it has not been officially joined in the lawsuit. *Johnson v. J.M. Smucker Co.*, No. CV H-24-0970, 2024 WL 2420733, at *4 (S.D. Tex. May 23, 2024). That reasoning is particularly applicable here, when TSU and the State knew from the beginning of this case that TSU was the proper defendant.

2. The fact that the motion to dismiss in *Bailey* was filed under §101.106(f) and the motion to dismiss in this case was filed under §101.106(e) does not make it any more acceptable for the government defendant to lay behind the log in an effort to rely on a statute of limitations defense. The government should not get away with such dilatory tactics and attempts to play games with the judicial system, regardless of which section the government employs.

Not only is there nothing in the express holding of *Bailey* that limits itself to motions filed by employees under §101.106(e), but limiting its holding to only that section allows government employers to do exactly what the *Bailey* court expressly rejected.

In *Bailey*, this Court explicitly refused to reward the government's "dilatory tactic" of waiting until after limitations expired to identify itself as the proper defendant and file a motion to dismiss under §101.106(f). *Bailey*, 332 S.W.3d at 399. *Bailey's* decision did not depend on whether the government employer sought to dismiss its employee under §101.106(f), or whether the employee sought to dismiss himself under §101.106(e). The reason the statute of limitations could not be invoked by the government employer is that, by suing for acts committed within the scope of his employment, the plaintiff had "in all but name only" sued the government

employer "all along," depriving the government employer of the ability to rely on a statute of limitations defense.

The substantive reason behind the procedure outlined in *Bailey* was the Court's conclusion that the government should not be rewarded for the dilatory tactic of waiting until after limitations expired to identify itself as the proper defendant. If that reasoning reflects the Court's understanding of the purpose behind §101.106, then that purpose is only advanced if that reasoning is applied regardless of whether the motion to dismiss is filed by the employee under section (e) or by the employer under section (f).

In other words, there is absolutely no reason to allow TSU, in this case, to use §101.106**(e)** to do exactly what the Court expressly refused to allow a different government employer to do under §101.106**(f)**. In the present case, Scott's attorneys intentionally chose not to seek his "expedient dismissal" until after limitations expired. Then, in the context of filing a motion to dismiss that admitted that TSU was liable for Scott's actions, those same attorneys claimed that the case couldn't proceed against TSU either, because Tanner had not timely brought suit against TSU. In this case, just like in *Bailey*, the government knew about its potential liability, and just chose not to file a motion to dismiss until after limitations expired as a

strategy for avoiding the plaintiff's claims. The only way to avoid rewarding the government for these dilatory tactics and gamesmanship is to allow the case to proceed against the proper defendant.

IV. *Bailey* is not distinguishable on any relevant grounds, and this Court should insist that it be followed in order to effect the Legislative intent of §101.106.

This Court remanded for the court of appeals to determine if Tanner established an "alternative legal basis" for "satisfying" her "obligation to serve" TSU by serving Scott, but "decline[d] to resolve . . . whether or how the principles of *Bailey* affect" that issue. *Tanner*, 689 S.W.3d at 296, 304. When the court of appeals analyzed *Bailey*, it mistakenly held that that there were differences between this case and *Bailey* that made it inapplicable here. But Bailey is controlling and its holding must be applied to preserve the legislative intent of §101.106.

First, the lower court held that, in *Bailey*, the plaintiff did not know that the doctor was a government employee, whereas Tanner knew Scott was a government employee. However, *Bailey* expressly held that the plaintiff's knowledge is irrelevant to whether the suit was, in effect, a suit against the government employer. *Bailey*, 332 S.W.3d at 401 ("Under the statute, it matters not that the Baileys may not have been aware of Sanders'

government employment when they sued him; only the fact of his employment, eventually established, is important.").

Next, the court of appeals claimed that the Baileys, unlike Tanner, did not have to formally substitute the government defendant into the case, because it had been there all along. But the existence of the government in that suit stemmed from the fact that its employee had been sued for acts performed in the scope of his employment, not on any participation in the lawsuit. If notice of or involvement in the lawsuit were actually the relevant criteria, surely Tanner should have even more justification for proceeding with her claim against TSU as the proper defendant, since, unlike the defendant in *Bailey*, TSU was actually named in the lawsuit and from its inception, and its own attorney chose whether and when to utilize a particular section of §101.106.

This Court should confirm that, when a suit has been brought against only the employer, and the employer has received notice and appeared in the lawsuit, the employer cannot later argue that it has never appeared in the lawsuit because additional, separate service of citation was not affected on the employer. *See, e,g. Ledesma v. City of Houston*, 623 S.W.3d 840, 849 (Tex. App.—Houston [1st Dist.] 2020, pet. denied) (noting that "the purposes

of the election-of-remedies provision" in §101.106 "generally favor a suit against the governmental unit when appropriate rather than a wholesale dismissal of a plaintiff's otherwise-meritorious suit" and refusing to allow City to disclaim course and scope after admitting course of scope by virtue of filing §101.106(e) motion).

In the end, *Bailey* is the same as this case on the issue that matters, and the Court should grant Tanner's Petition to ensure that *Bailey*'s holding is preserved. In both *Bailey* and this case, a suit was brought against a government employee for acts within the scope of his employment, and the government, who controlled the timing of when the motion to dismiss was filed, manipulated that timing to try to assert that limitations barred plaintiff's claim.

If this Court does not allow a government employer who has been in the case "all along" to rely on a statute of limitations defense after manipulating the timing of a §101.106**(e)** motion to dismiss, then it should also refuse to allow §101.106**(f)** to be manipulated to achieve that same result. It is hard enough for an injured plaintiff to satisfy the statutory prerequisites put in place by the Legislature and this Court before a claim can be brought for even those acts for which immunity is clearly waived. And government

employers like TSU who are exclusively in control of the timing of filing motions to dismiss under §101.106 should not be allowed to hide behind a claim that the statute of limitations has allegedly expired, even though the government participated in the lawsuit on its own behalf and on behalf of its employee since the very inception of the lawsuit. TSU's plea to the jurisdiction based on the statute of limitations should be denied.

PRAYER

For the reasons set forth above, Tanner requests that the Court grant her Petition for Review and reverse the holding of the court of appeals so that *Bailey* and §101.106 is applied consistently throughout the State.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

This document complies with the typeface requirement of TEX. R. APP. P. 9.4(e) because it has been prepared in conventional typeface no smaller than 14-point for text and 12-point for footnotes. This document also complies with the word-count limitations of TEX. R. APP. P. 9.4(i) because it contains 4,264 words, excluding any parts exempted by TEX. R. APP. P. 9.4(i)(1).

/s/ Tammy M. Holt
Tammy M. Holt

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of this *Petition for Review* has been forwarded to the following counsel of record on August 27, 2025, pursuant to Texas Rule of Appellate Procedure 9.5(b).

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NO. 25-0648

IN THE SUPREME COURT OF TEXAS

HANNAH R. TANNER

PETITIONER

vs.

TEXAS STATE UNIVERSITY

RESPONDENT

On Petition for Review from the Third Court of Appeals, Austin, Texas
Cause No. 03-21-00131-CV

APPENDIX IN SUPPORT OF PETITION FOR REVIEW

TAB #	DESCRIPTION
TAB A	June 11, 2025 – Opinion of the Third Court of Appeals, Austin, Texas
TAB B	June 11, 2025 – Dissenting Opinion of the Third Court of Appeals, Austin, Texas (Justice Crump)

TAB A

TEXAS COURT OF APPEALS, THIRD DISTRICT, AT AUSTIN

ON REMAND

NO. 03-21-00131-CV

Hannah R. Tanner, Appellant

v.

Texas State University, Appellee

FROM THE 207TH DISTRICT COURT OF HAYS COUNTY
NO. 17-0354, THE HONORABLE WILLIAM R. HENRY, JUDGE PRESIDING

O P I N I O N

This case returns to us on remand from the Texas Supreme Court, which determined that appellee Texas State University's challenge to the timeliness of appellant Hannah R. Tanner's service is a jurisdictional issue, properly raised in a plea to the jurisdiction. *See Texas State Univ. v. Tanner* (*Tanner II*), 689 S.W.3d 292, 296-97, 302 (Tex. 2024). The Texas Supreme Court remanded the case for this Court to determine whether the trial court properly granted the University's plea, a question that we did not reach because we had "concluded that untimely service does not pose a jurisdictional issue that a plea to the jurisdiction can resolve." *Id.* at 296-97.

In concluding otherwise, the Texas Supreme Court determined that timely service is part of the statutory prerequisite of bringing suit before the limitations period expires and thus is a part of that particular jurisdictional requirement for a suit against a governmental entity. *Id.* at

296 (citing Tex. Gov't Code § 311.034 (Waiver of Sovereign Immunity)); *see also id.* at 302 ("We accordingly hold that the statute of limitations, including the requirement of timely service, is jurisdictional in suits against governmental entities. The University's plea to the jurisdiction was therefore a proper vehicle to address Tanner's alleged failure to exercise diligence in serving the University."). The supreme court concluded that Tanner "has not established, and cannot establish, diligence in service on the University," which is a means to establish timely service. *Id.* at 304. However, the court directed this Court to consider the legal question of whether Tanner's service on the University's employee "satisfies her obligation to serve the University." *Id.* at 303.

"Because jurisdiction [over a governmental entity] depends on bringing suit within limitations, and because the statute of limitations requires timely service," we must determine whether Tanner's "service on [the University's employee] effectively *was* service on the University." *Id.* For the reasons explained below, we hold that Tanner's service on the University's employee is not effectively service on the University, and we affirm the trial court's grant of the University's plea to the jurisdiction.

BACKGROUND

The underlying facts and procedural history are well-known to the parties and have been set out in our prior opinion and the supreme court's opinion. Thus, we will limit our discussion of the facts and procedural history to those relevant to our analysis of whether Tanner timely served the University. As the supreme court noted, "[t]he relevant facts are largely undisputed, and we view them in the light most favorable to Tanner, the nonmovant." *Id.* at 297.

On October 4, 2014, Tanner was injured when she was thrown from a golf cart on the Texas State University campus. Dakota Scott, the University's employee, had been driving the

golf cart in the scope of his employment. Tanner brought this suit under the Texas Tort Claims Act against the Texas State University System, Scott, and the University, on September 29, 2016—less than a week before the expiration of the two-year limitations period for a personal-injury claim. *See* Tex. Civ. Prac. & Rem. Code § 16.003 (requiring a person to "bring suit" for personal injury "not later than two years after the day the cause of action accrues"); *see also generally id.* §§ 101.001-.109 (Texas Tort Claims Act).[1]

Tanner served the University System soon after filing suit, on October 4, 2016. Her original petition expressly states that she was not requesting service on either Scott or the University "at this time." At the end of October, the System filed an answer and a plea to the jurisdiction. On November 21, 2016, the System disclosed in its interrogatory responses to Tanner that it "is a separate entity and governmental unit from each of its component institutions" and that Scott had "never been employed by the Texas State University System."

A year and ten months later, on September 18, 2018, Tanner served Scott—but she still did not serve the University. (The System had filed a brief in support of its plea to the jurisdiction on August 30, 2018, and set the plea for hearing for September 19, 2018.) On December 3, 2018, the district court granted the System's plea to the jurisdiction and dismissed and severed Tanner's claims against the System from the case. Tanner did not appeal that ruling.

Tanner finally served the University on May 20, 2020—five-and-a-half years after her injury and three-and-a-half years after limitations had run. On June 2, 2020, the University answered, asserting the affirmative defense that Section 16.003's statute of limitations for personal-injury claims barred Tanner's claims. The University also moved to dismiss Scott

[1] Unless otherwise noted, all statutory references are to the Texas Civil Practice & Remedies Code.

pursuant to Section 101.106(e) of the Texas Tort Claims Act.[2] On June 30, 2020, the trial court granted the University's motion to dismiss Scott pursuant to Section 101.106(e) and severed Tanner's claim against Scott and restyled the case.

On October 2, 2020, the University filed its plea to the jurisdiction and alternative motion for summary judgment, alleging that Tanner's lack of diligence in serving it resulted in her suit being untimely and barred by the statute of limitations. The trial court granted the plea to the jurisdiction without ruling on the alternative summary-judgment motion and dismissed with prejudice Tanner's claims against the University.

Tanner appealed from that order, and we reversed. *Tanner v. Texas State Univ.* (*Tanner I*), 644 S.W.3d 747, 753 (Tex. App.—Austin 2022), *rev'd and remanded*, 689 S.W.3d 292 (Tex. 2024). We held that untimely service does not implicate jurisdiction under Texas Government Code Section 311.034, and thus, governmental entities cannot challenge untimely service through a plea to the jurisdiction. *See id.* at 752. As explained above, the Texas Supreme Court reversed our judgment and remanded the case because it concluded that "the statute of limitations is not satisfied, until the plaintiff achieves *both* steps"—"filing the petition *and* achieving service of process." *Tanner II*, 689 S.W.3d at 300.

[2] The Texas Supreme Court has held that "[b]y filing [a motion to dismiss under Section 101.106(e)], the governmental unit effectively confirms the employee was acting within the scope of employment and that the government, not the employee, is the proper party." *Texas Adjutant Gen.'s Office v. Ngakoue*, 408 S.W.3d 350, 358 (Tex. 2013); *see also University of Tex. Health Sci. Ctr. at Houston v. Rios*, 542 S.W.3d 530 (Tex. 2017) (reaffirming that employer's filing of motion to dismiss under Section 101.106(e) effectively confirms that employee was an employee acting within scope of employment).

ANALYSIS

The question presented to us on remand is whether the University established its entitlement to dismissal as a matter of law in its plea to the jurisdiction. *Id.* at 302. As the supreme court pointed out, Tanner "has identified no disputed *fact* issue related to her exercise of diligence or anything else in connection with service—that is to say, she has identified no factual question that would be fit for presentation to a jury." *Id.* at 302-03. The court identified the three legal arguments that Tanner made to explain her delay, stating that she cannot establish her diligence in service under any of these arguments, but that the first one warrants remand to us "for resolution of a potentially dispositive legal question." *Id.* at 303.

The legal question presented to us for consideration is whether Tanner's "service on Scott effectively *was* service on the University." *Id.* After remand, we requested supplemental briefing from the parties on the two potentially dispositive issues identified by the supreme court: (1) whether Tanner's service on Scott satisfied her obligation to serve the University, his employer, under Section 101.106 and (2) if so, whether Tanner timely served Scott. *See id.*at 303-04 & n.2. To answer the question presented to us on remand, we must construe the relevant portions of Section 101.106, the election-of-remedies provision in the Texas Tort Claims Act. Accordingly, we provide a brief overview of the statutory framework.

Statutory Framework

"Sovereign immunity and its counterpart, governmental immunity, exist to protect the State and its political subdivisions from lawsuits and liability for money damages." *Mission Consol. Indep. Sch. Dist. v. Garcia*, 253 S.W.3d 653, 655 (Tex. 2008). "[T]he manner in which the government conveys its consent to suit is through the Constitution and state laws." *Id.* at 660.

Thus, "it is the Legislature's sole province to waive or abrogate sovereign immunity." *Id.* (quoting *Texas Nat. Res. Conservation Comm'n v. IT-Davy,* 74 S.W.3d 849, 853 (Tex. 2002)). We narrowly construe statutory waivers of immunity because "the Legislature's intent to waive immunity must be clear and unambiguous." *Id.* at 655 (citing Tex. Gov't Code § 311.034).

The Texas Tort Claims Act provides a limited waiver of immunity for certain tort claims against governmental entities and caps recoverable damages. *See, e.g.*, Tex. Civ. Prac. & Rem. Code §§ 101.021, .023, .025; *see also Garcia*, 253 S.W.3d at 655-56. To prevent plaintiffs from circumventing the Act's damages cap and other restrictions by suing governmental employees, the Legislature enacted an election-of-remedies provision. *Garcia*, 253 S.W.3d at 656. The Legislature has structured that provision "to prevent a plaintiff from pursuing alternative theories against both the employee and the governmental unit through trial or other final resolution." *Id.*

The election-of-remedies section provides as follows:

> (a) The filing of a suit under this chapter against a governmental unit constitutes an irrevocable election by the plaintiff and immediately and forever bars any suit or recovery by the plaintiff against any individual employee of the governmental unit regarding the same subject matter.
>
> (b) The filing of a suit against any employee of a governmental unit constitutes an irrevocable election by the plaintiff and immediately and forever bars any suit or recovery by the plaintiff against the governmental unit regarding the same subject matter unless the governmental unit consents.
>
> (c) The settlement of a claim arising under this chapter shall immediately and forever bar the claimant from any suit against or recovery from any employee of the same governmental unit regarding the same subject matter.
>
> (d) A judgment against an employee of a governmental unit shall immediately and forever bar the party obtaining the judgment from any suit against or recovery from the governmental unit.

> (e) If a suit is filed under this chapter against both a governmental unit and any of its employees, the employees shall immediately be dismissed on the filing of a motion by the governmental unit.
>
> (f) If a suit is filed against an employee of a governmental unit based on conduct within the general scope of that employee's employment and if it could have been brought under this chapter against the governmental unit, the suit is considered to be against the employee in the employee's official capacity only. On the employee's motion, the suit against the employee shall be dismissed unless the plaintiff files amended pleadings dismissing the employee and naming the governmental unit as defendant on or before the 30th day after the date the motion is filed.

Tex. Civ. Prac. & Rem. Code § 101.106.

Standard of Review

"Sovereign immunity implicates a court's subject-matter jurisdiction." *EBS Sols., Inc. v. Hegar*, 601 S.W.3d 744, 749 (Tex. 2020). Because subject-matter jurisdiction is a question of law, we review a trial court's ruling on a plea to the jurisdiction de novo. *Id.* Here, the jurisdictional issue involves statutory construction, a question of law that we review de novo. *First Am. Title Ins. Co. v. Combs*, 258 S.W.3d 627, 631 (Tex. 2008). When construing a statute, "our goal is to ascertain the Legislature's intent." *Texas Adjutant Gen.'s Office v. Ngakoue*, 408 S.W.3d 350, 354-55 (Tex. 2013).

To ascertain that intent, we begin with the plain language of the statute. *TGS-NOPEC Geophysical Co. v. Combs*, 340 S.W.3d 432, 439 (Tex. 2011). We must view the statute as a whole. *Id.* "We must endeavor to read the statute contextually, giving effect to every word, clause, and sentence." *Ngakoue*, 408 S.W.3d at 354 (quoting *In re Office of Attorney Gen.*, 422 S.W.3d 623, 629 (Tex. 2013) (orig. proceeding)). We may consider the "object sought to be obtained" by the statute and the "consequences of a particular construction." *Id.* (quoting Tex. Gov't Code § 311.023(1), (5)).

I. The Legislature intended the Act's election-of-remedies provision to force an early decision by the plaintiff about who to sue, as well as the trial court's dismissal of governmental employees when suit should have been brought against the government.

To properly construe Section 101.106 in determining whether Tanner's service on Scott was effectively service on the University and to consider the statute as a whole, we must examine the policy underlying the election-of-remedies provision. As the Texas Supreme Court has observed, with the 2003 revision of Section 101.106, the Legislature intended to "force a plaintiff to decide at the outset whether an employee acted independently and is thus solely liable, or acted within the general scope of his or her employment such that the governmental unit is vicariously liable" to reduce "the resources that the government and its employees must use in defending redundant litigation and alternative theories of recovery." *Garcia*, 253 S.W.3d at 657 & n.3 (noting that state agencies must "indemnify their employees for litigation expenses if the employee's actions were within the course and scope of his or her employment" and citing Tex. Civ. Prac. & Rem. Code §§ 104.001, .002). Section 101.106 "favors the expedient dismissal of governmental employees when suit should have been brought against the government." *Ngakoue*, 408 S.W.3d at 355. "An early determination of who constitutes the proper defendant 'narrows the issues for trial and reduces delay and duplicative litigation costs' by removing a plaintiff's ability 'to plead alternatively that the governmental unit is liable because its employee acted within the scope of his or her authority but, if not, that the employee acted independently and is individually liable.'" *Id.* (quoting *Garcia*, 253 S.W.3d at 657). Thus, when the suit arises from an employee's conduct that was within the scope of employment and could be brought against the government under the Tort Claims Act, we must favor construing the meaning of Section 101.106's various

provisions in the way "that most clearly leads to the early dismissal of a suit against an employee."[3] *Id.*

In *Ngakoue*, the Texas Supreme Court explained the interaction of Subsections (b) and (e) and Subsections (b) and (f). *Id.* Both Subsection (e) and (f) offer the possibility for early dismissal of a suit against an employee, but in different situations. Subsection (f) applies when "suit is filed against an employee of a governmental unit based on conduct within the general scope of that employee's employment and if it could have been brought under this chapter against the governmental unit." Tex. Civ. Prac. & Rem. Code § 101.106(f). In that situation, "the suit is considered to be against the employee in the employee's official capacity only." *Id.*

Courts have long held that a suit against a government employee is merely 'another way of pleading an action against an entity of which [the employee] is an agent.'" *Texas A & M Univ. Sys. v. Koseoglu*, 233 S.W.3d 835, 844 (Tex. 2007) (quoting *Kentucky v. Graham*, 473 U.S. 159, 165 (1985)). Thus, "[a] suit against a state official in his official capacity 'is *not* a suit against the official personally, for the real party in interest is the entity.'" *Id.* (quoting *Graham*, 473 U.S. at 166). "*As long as the government entity receives notice and an opportunity to respond*, an official-capacity suit is, *in all respects other than name*, to be treated as a suit against the entity." *Graham*, 473 U.S. at 166 (emphases added) (explaining distinction between personal-capacity and official-capacity suits against governmental employees in holding that attorneys' fees could not be recovered from governmental entity when suit was against governmental employees in their personal capacities).

[3] "[A]ll tort theories alleged against a governmental unit, whether it is sued alone or together with its employees, are assumed to be 'under [the Tort Claims Act]' for purposes of section 101.106." *Mission Consol. Indep. Sch. Dist. v. Garcia*, 253 S.W.3d 653, 659 (Tex. 2008).

Accordingly, Subsection (f) provides a procedure by which the governmental employee who is deemed to have been sued only in his official capacity will be dismissed from the suit. Upon filing of a motion to dismiss, the employee will be dismissed either "(1) via the plaintiff's amended pleading substituting the governmental unit for the employee as the defendant; or (2) absent such an amended pleading, via the trial court's order granting the employee's motion and dismissing the suit against the employee." *Ngakoue*, 408 S.W.3d at 358. Because the "suit against an employee in his official capacity is *not* a suit against the employee" in his individual capacity—instead, it is in all but name a suit against the governmental unit—it does not trigger Subsection (b)'s bar against suing a governmental unit after a plaintiff has filed suit against an employee of the unit. *Id.* at 357. Thus, Subsection (f) allows the plaintiff's suit to proceed against the governmental unit *if* the governmental unit is properly substituted for the employee as the defendant; this "procedure for dismissal [of the employee] independently serves section 101.106's recognized purposes of ensuring early dismissal of governmental employees when suit should have been brought against the government and reducing the expense and delay associated with alternative pleading." *Id.* at 358. The supreme court summarized the interaction of Subsections (f) and (b) as follows:

> In sum, subsection (f) does not require dismissal of the employee by the plaintiff to overcome the bar to suit against the government in subsection (b); rather, subsection (f) provides the [Texas Tort Claims Act] plaintiff a window to amend his pleadings to substitute the governmental unit before the court dismisses the suit against the employee on the employee's motion where appropriate. Tex. Civ. Prac. & Rem. Code § 101.106(f). *If the plaintiff fails to substitute the government*, and the employee was sued in his official capacity only, *then the case must be dismissed*.

Id. at 359 (emphases added).

"The same purposes [of ensuring early dismissal of governmental employees when suit should have been brought against the government and reducing the expense and delay associated with alternative pleading] are served by subsection (e), which applies when suit is filed against both a governmental unit under the [Texas Tort Claims Act] and its employee." *Id.* at 358. Subsection (e)—the applicable provision in Tanner's case—establishes that "the employee shall immediately be dismissed on the filing of a motion by the governmental unit." Tex. Civ. Prac. & Rem. Code § 101.106(e). As we noted earlier, "[b]y filing such a motion, the governmental unit effectively confirms the employee was acting within the scope of employment and that the government, not the employee, is the proper party." *Ngakoue*, 408 S.W.3d at 358. "Further, subsection (e) does not provide for dismissal of the governmental unit, so when the employee is dismissed under that provision, the suit then proceeds solely against the government, *assuming immunity is otherwise waived*." *Id.* (emphasis added); *see also Garcia*, 253 S.W.3d at 659 (concluding that when tort claims were asserted against both employee and governmental employer, suit was brought under Tort Claims Act, but Act did not waive immunity for type of tort claims asserted, meaning employee would have been entitled to dismissal on governmental employer's motion and claims brought under Act against employer would not survive); *Tanner II*, 689 S.W.3d at 296 (holding that "bringing suit" within limitations requires timely service and is statutory prerequisite to suing governmental entity that is jurisdictional and thus required for waiver of immunity).

II. Tanner misreads Subsection (f) and the analysis in *Bailey* in arguing that service on Scott was effectively service on the University.

With this procedural understanding of Section 101.106 in mind, we turn to Tanner's argument that her allegedly timely service on Scott satisfies the statutory prerequisite of timely

service on the University, and thus, she has satisfied the jurisdictional prerequisite of "bringing suit" against the University within the statute of limitations. *See Tanner II*, 689 S.W.3d at 300. Tanner relies on Subsection (f) and the Texas Supreme Court's holding in *University of Tex. Health Sci. Ctr. at San Antonio v. Bailey*, 332 S.W.3d 395 (Tex. 2011), to support this argument. In *Bailey*, the Texas Supreme Court held that a governmental employer may be substituted as a defendant upon its employee's Subsection (f) motion after limitations has run. 332 S.W.3d at 396; *see also Ngakoue*, 408 S.W.3d at 357 (describing *Bailey*'s holding). The court determined that the employer could not prevail on its defense of limitations because when the employer was substituted as the defendant in the employee's place, "there was no change in the real party in interest" because "[u]nder section 101.106(f), the Baileys' suit against [the employee] was, *in all respects other than name*, a suit against the [employer]." *Id.* at 401-02 (emphasis added). As the court described it in *Tanner II*, "[u]nder the Act, the Baileys' suit had been a suit against the employer *all along*." 689 S.W.3d at 303.

Tanner contends that we should extend the court's reasoning in *Bailey* to this case. She asserts that because Subsection (f) gives the plaintiff permission to "file[] amended pleadings dismissing the employee and naming the governmental unit as defendant" within 30 days of the motion, and the court allowed such a substitution after limitations had run, we should similarly conclude that the University "as a named party" in this suit "has also been in this case 'all along.'" We disagree.

Important factual and procedural differences between *Bailey* and this case result in a different outcome here. As the supreme court pointed out in *Tanner II*, "unlike in this case, the Baileys did not know that the individual defendant that they had sued, Sanders, was a government employee." *Id.* (citing 332 S.W.3d at 401). In contrast, here "Tanner named the University from

the beginning and so had no need to later name a correct party, as § 101.106(f) provides and as the Baileys did." *Id.* In *Bailey*, the employee defendant "Sanders waited until seven weeks after limitations had passed and then announced that his employer (another state university) should have been the defendant the whole time." *Id.* (citing 332 S.W.3d at 397). The employer then invoked limitations. *Id.* (citing 332 S.W.3d at 399). Tanner, on the other hand, "*could* have served every defendant at the time of filing but, purportedly for strategic reasons, chose *not* to do so." *Id.*

As we explained above, Subsection (f) and Subsection (e) operate differently even though they serve the same goals of ensuring early dismissal of governmental employees when suit should have been brought against the government and reducing the expense and delay associated with alternative pleading. In *Bailey*, because only the employee had been named in the suit as a defendant, Subsection (f) was the operative provision. *See* Tex. Civ. Prac. & Rem. Code § 101.106(f). Therefore, the employee controlled the timing of the motion to dismiss, which put the Baileys on notice that he was an employee of a governmental unit and that their suit could be brought against the governmental unit, and required the Baileys to either amend their pleadings to substitute the governmental unit for the employee as the defendant, which they did, or face dismissal of their suit against the employee. *See id.*

Here, Tanner filed suit against both a governmental unit and its employee, triggering the application of Subsection (e). Subsection (e) places control of the employee's dismissal from the suit in the governmental unit's hands: "the employee shall immediately be dismissed on the filing of a motion by the governmental unit." *Id.* § 101.106(e). When a Subsection (e) motion is filed, "the governmental unit effectively confirms the employee was acting within the scope of employment and that the government, not the employee, is the proper party." *Ngakoue*, 408 S.W.3d at 358. "Further, subsection (e) does not provide for dismissal of

the governmental unit, so when the employee is dismissed under that provision, the suit then proceeds solely against the government, *assuming immunity is otherwise waived*." *Id.* (emphasis added). In other words, if suit has *properly been brought* against the governmental unit, then after the employee is dismissed under a Subsection (e) motion, the suit *continues* against the governmental unit.

The holding in *Bailey* turned on the specific language in Subsection (f) providing that "when a government employee is sued for conduct within the general scope of employment, as Sanders was, and the employer could have been sued under the Act—in tort, that is—instead, 'the suit is considered to be against the employee in the employee's official capacity only.'" 332 S.W.3d at 401 (footnote and citation omitted). Thus, even though the Baileys may have intended to sue Sanders in his individual capacity, Subsection (f) does not allow that choice:

> Under the statute, it matters not that the Baileys may not have been aware of Sanders' government employment when they sued him; only the fact of his employment, eventually established, is important. ***Substitution of the Center as the defendant was not automatic***; Sanders was required to file a motion. But the statute does not require a motion for a government employee to be considered to have been sued in his official capacity.

Id. (emphasis added). The court concluded that because Subsection (f) "requir[es] a government employer to be substituted on the employee's motion," the Center could not prevail on its defense of limitations.[4] *Id.* at 402.

[4] We note that even under Subsection (f), timely service of the amended suit upon the governmental employer would be required in order to trigger the employer's deadline to answer the suit. *See University of Tex. Health Sci. Ctr. at San Antonio v. Bailey*, 332 S.W.3d 395, 398 & n.10 (Tex. 2011) (noting that trial court gave deadline to Baileys to amend pleadings, and after employer answered suit, trial court issued order dismissing employee and severed him from case).

Subsection (e) contains no language requiring substitution of one party for another because none is needed. The employer controls the filing of the motion to dismiss, and contrary to Tanner's argument, the University had no obligation to do so even as a named party until served and brought into the suit.[5] *See Tanner II*, 689 S.W.3d at 304 ("[T]he University had no duty to act at all" until it had been served.). Subsection (e) contemplates a case where both the governmental employer and the employee sued in his official capacity are already named parties to the suit, who have been served and are participating in the litigation.

The court in *Bailey* construed Subsection (f) to allow substitution of a governmental employer for an employee sued in his official capacity after the statute of limitations had expired based on the specific statutory language in Subsection (f), which gives control of the timing of the motion to dismiss to the employee. 332 S.W.3d at 401-02. In this case governed by Subsection (e), which gives control of the timing of the motion to dismiss to the employer (and thus contemplates the employer's having been served), we decline to extend *Bailey*'s holding to allow service on an employee sued in his official capacity to constitute effective service on his governmental employer. In addition to the lack of statutory support for this extension of *Bailey*'s holding, we observe that such a holding would result in practical problems with scheduling in the trial court because in theory a plaintiff would never need to serve the employer as long as they timely served the employee. Therefore, we hold that Tanner's service on Scott did not constitute effective service on the University.

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[5] Similarly, Tanner argues that the University's attorneys, who also represented Scott, "have been directing the strategy of the litigation from the inception," and thus, the University "should not be allowed to use its alleged 'absence' from the case as the basis for a statute of limitations defense." As the supreme court noted in *Tanner II*, "common representation alone does not impose any duty on an unserved party." 689 S.W.3d at 304.

Having concluded that Tanner's service on Scott does not constitute effective service on the University, we need not reach the issue of whether Tanner's service on Scott was timely. *See* Tex. R. App. P. 47.1.

CONCLUSION

Having held that Tanner's service on Scott did not constitute service on the University, and thus, the University was not timely served, we affirm the trial court's grant of the University's plea to the jurisdiction.

Gisela D. Triana, Justice

Before Justices Triana, Theofanis, and Crump
Dissenting Opinion by Justice Crump

Affirmed

Filed: June 11, 2025

TAB B

TEXAS COURT OF APPEALS, THIRD DISTRICT, AT AUSTIN

ON REMAND

NO. 03-21-00131-CV

Hannah R. Tanner, Appellant

v.

Texas State University, Appellee

FROM THE 207TH DISTRICT COURT OF HAYS COUNTY
NO. 17-0354, THE HONORABLE WILLIAM R. HENRY, JUDGE PRESIDING

D I S S E N T I N G O P I N I O N

On remand, the Texas Supreme Court directed this Court to consider the following "question of law": Does Section 101.106 of the Texas Tort Claims Act excuse Hannah Tanner from separately serving Texas State University in this case? *See Texas State Univ. v. Tanner*, 689 S.W.3d 292, 303 (Tex. 2024). I would conclude that, in this case, it does. Therefore, I respectfully dissent.

After Tanner served Texas State University (the University), the University filed an answer, in which it asserted that Tanner's claims against it were barred by limitations and that it had "full sovereign immunity both from suit and from liability, save only to the extent of the partial waiver of same given by the Texas Tort Claims Act." The University *also* filed a motion to dismiss its employee, Dakota Scott, pursuant to Section 101.106(e) of the Texas Tort

Claims Act. *See* Tex. Civ. Prac. & Rem. Code § 101.106(e) ("If a suit is filed under this chapter against both a governmental unit and any of its employees, the employees shall immediately be dismissed on the filing of a motion by the governmental unit."). By moving to dismiss the claims against Scott under Section 101.106(e), the University "judicially admitted that [Scott] was acting in the scope of employment and agreed to vicariously defend [him]." *See Ledesma v. City of Houston*, 623 S.W.3d 840, 848 (Tex. App.—Houston [1st Dist.] 2020, pet. denied); *see also Texas Dep't of Pub. Safety v. Deakyne*, 371 S.W.3d 303, 311 (Tex. App.—San Antonio 2011, pet. denied) ("We hold that when a plaintiff sues both the governmental unit and its employee, and the governmental unit moves to dismiss its employee under section 101.106(e) the governmental unit becomes the elected defendant . . . ."). Under these circumstances, separate service on the University, which had voluntarily substituted itself for Scott by filing a Section 101.106(e) motion to dismiss, was not required to cause it to become the defendant against whom Tanner's claims were asserted.

By filing a motion to dismiss pursuant to Section 101.106(e), "the governmental unit effectively confirms the employee was acting within the scope of employment and that the government, not the employee, is the proper party." *Texas Adjutant Gen.'s Off. v. Ngakoue*, 408 S.W.3d 350, 358 (Tex. 2013). The Texas Tort Claims Act provides that a governmental unit is liable for personal injury "caused by the wrongful act or omission or the negligence of an employee acting within the scope of employment" under certain defined circumstances, *see* Tex. Civ. Prac. & Rem. Code § 101.021 (Governmental Liability), and waives the governmental unit's sovereign immunity "to the extent of liability created by" the statute, *id.* § 101.025 (Waiver of Governmental Immunity; Permission to Sue). Therefore, by filing the motion to dismiss, the University confirmed that Scott was acting within the scope of his employment and,

consequently, that it was liable for damages resulting from any qualifying conduct, for which the statute waived its immunity. *See Wichita Falls State Hosp. v. Taylor*, 106 S.W.3d 692, 695 (Tex. 2003) (consent to suit must ordinarily be found in constitutional provision or legislative enactment). As the Texas Supreme Court has explained, "subsection (e) does not provide for dismissal of the governmental unit, so when the employee is dismissed under that provision, the suit then proceeds solely against the government, assuming immunity is otherwise waived." *Ngakoue*, 408 S.W.3d at 358 (citing *Mission Consol. Indep. Sch. Dist. v. Garcia*, 253 S.W.3d 653, 659 (Tex. 2008)). Here, the effect of the University's filing of the motion to dismiss was that Tanner's suit against it could proceed to the extent that her claims fell within the scope of the Texas Tort Claims Act's waiver of immunity; i.e., that her damages were caused by Scott's qualifying conduct. *Cf. Garcia*, 253 S.W.3d at 659 (holding that when tort claims were asserted against employee and governmental employer for which Texas Tort Claims Act did not waive immunity, employee would be entitled to dismissal and tort claims against government would not survive). Under these circumstances, Tanner's failure to timely serve the University, which might otherwise have created a jurisdictional impediment to her suit against the governmental unit, does not operate to bar her claims.

Accordingly, I would conclude that Section 101.106 excuses Tanner from separately serving the University and that the relevant inquiry is whether her service on Scott was timely. I would, therefore, reach the issue the Court does not. For these reasons, I respectfully dissent.

Karin Crump, Justice

Before Justices Triana, Theofanis, and Crump

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